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File No.: EXP202312400
RESOLUTION OF SANCTIONING PROCEDURE
From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND
FIRST: Ms. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on 22/07/2023. The complaint is directed against GEO ALTERNATIVA, S.L. with NIF B87382644 (hereinafter, the respondent). The received document states the following:
The complainant states that the respondent company is demanding payment of a debt associated with the non-payment of a gas supply invoice from 07/2021, as well as the inclusion of her data in ASNEF in relation to this debt, despite having reached an agreement before the Consumer Section of the Territorial Service of Industry, Commerce, and Economy.
She provides:
- ASNEF report on the inclusion of her personal data at the request of the respondent, dated 30/05/2023.
- Resolution of the Consumer Section of the Territorial Service of Industry, Commerce, and Economy, dated 17/02/22, in which it is agreed to archive the complaint due to having reached an agreement between the parties.
- Payment demands for the debt from the respondent, on dates subsequent to the aforementioned resolution.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 19/09/2023, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.
Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, a copy was also sent by postal mail, which was duly notified on 11/10/2023. In this notification, the obligation to communicate electronically with the Administration was reminded, and information was provided on the means of access to such notifications, reiterating that, henceforth, notifications would be made exclusively by electronic means.
The respondent, in a document dated 24/10/2023, states the following: that the right of access is regulated so that the user knows the processing of their data; that what was requested were generic recordings of conversations held with a commercial manager regarding an invoice. It also states that the resolution of the Consumer Section of the Territorial Service of Industry, Commerce, and Economy has not been received.
It provides:
- Certificate sent to ASNEF.
- List of communications sent to the client.
- Response to the complainant's complaint before the Consumer Section of the Territorial Service of Industry, Commerce, and Economy.
- Proof of payment made.

THIRD: On 22/10/2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On 11/01/2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5.a) of the GDPR.

FIFTH: Following the notification of the initiation agreement on 19/01/2024, on 02/02/2024, the respondent submitted a written statement of allegations summarizing: that the debt that led to the complainant's inclusion in the file is a certain, due, and enforceable debt, for which multiple claims had been made and which was subsequently paid by the complainant in November 2023; that the controversy arises from the interpretation of the subrogation by the respondent in the rights of Cepsa and the alleged elimination of the discounts that had been applied; that although the debt was included in the file on 30/05/2023, it was removed from it on 30/09/2023, prior to the payment of the debt by the complainant in anticipation that it would be paid; that, just as the debt met the requirements of Article 20 of the LOPDGDD, it was required prior to its inclusion; that the case should be archived and, if not, subsidiarily, the proposed sanction should be reduced to the minimum degree.

SIXTH: On 13/02/2024, the instructor of the procedure agreed to open a period for the practice of evidence, agreeing to the following:
- To consider the complaints filed by the complainants and their documentation as reproduced for evidentiary purposes, as well as the documents obtained and generated by the inspection services that are part of the file.
- To consider the allegations to the initiation agreement submitted by the respondent and the accompanying documentation as reproduced for evidentiary purposes.

SEVENTH: On 16/04/2024, a Proposal for Resolution was issued stating that the respondent should be sanctioned by the Director of the Spanish Agency for Data Protection for an infringement of Article 6.1 of the GDPR, classified in Article 83.5.a) of the GDPR, with a fine of €20,000 (twenty thousand euros). The aforementioned proposal was notified on 25/04/2024 according to the proof of notification in the file.
On 10/05/2024, the respondent submitted a written statement of allegations indicating as a preliminary allegation a series of considerations regarding the owed debt and the

action of the claimant party regarding the same. In this regard, it refers to the Supreme Court ruling of 27/02/2024 (Judgment No. 280/2024) concerning the right to honor. It also asserts that the debt existed and was effective as a result of the non-payment of an invoice; that the debt was communicated to the claimant party; and that the treatment was lawful; Furthermore, it requests the filing or, subsidiarily, the reduction of the sanction.
EIGHTH: From the actions taken in the present procedure, the following have been accredited,
PROVEN FACTS
FIRST. On 22/07/2023, a document from the claimant party was received by the AEPD in which it states that the respondent has demanded payment of a debt related to the non-payment of an invoice for gas supply from 07/2021, including its data in delinquent files, despite having reached an agreement before the Consumer Section of the Territorial Service of Industry, Commerce, and Economy of the Junta de Castilla y León.
SECOND. A document from ASNEF/EQUIFAX, dated 30/05/2023, has been submitted, which states that "We inform you that on 29/05/2023, the entity Geo Alternativa requested the registration in the ASNEF file of the following personal data related to the non-payment of the contract it maintains with said entity:
PRODUCT
UNPAID AMOUNT QUALITY
ELECTRICITY GAS
(...)
HOLDER
(…)"
THIRD. A Natural Gas Supply Contract, Electricity, and Maintenance of Gas Installations No. ***CONTRACT.1, signed by the claimant party and the marketer Cepsa Comercial Petróleo SAU on 05/06/2019, has been submitted.
FOURTH. An email dated 07/01/2021 from CEPSA (the company with which it had an electricity supply contract) sent to the claimant party informs them of the agreement reached with the respondent

party:
“(...)
We are contacting you to inform you that Cepsa Comercial Petróleo, S.A.U. (“Cepsa”) will soon cease to provide its services of Cepsa Home and Cepsa Light and Gas Business.
For this reason, Cepsa has reached an agreement with the marketing company GEO Alternativa, S.L., which operates under the commercial brand “PODO” (www.mipodo.com) for the transfer of customers who have contracted electricity, natural gas, and associated maintenance services with us.
This transfer will entail the consequent contractual subrogation in your electricity and/or natural gas supply contract (and provision of associated maintenance services) in favor of PODO.
In this regard, the subrogation by PODO guarantees the maintenance of the current General and Particular Conditions (“CGyP”) of your contract until the end date of the current annual period at the time of the effective transfer of the contract and, in any case, for a minimum period of six months from the date on which the effective transfer of the contract occurs.
With PODO, the following conditions will be maintained without you having to do anything:
Prices and discounts of your contracted tariffs.
Promotional discounts on fuel (in the form of discount points “Because YOU Return”) at Cepsa Service Stations (valid for Cepsa Home customers).
A 12-month service for emergencies and repairs of appliances and the electrical installation of your home included in the price you currently have.
And of course, the change will be made without any interruption of supply and at no additional cost to you.
(…)”
FIFTH. Despite what was stated in the previous email, the respondent sent an email to the claimant party on 03/03/2021, stating the following:
“(...)
Cepsa assured you that when you switched to Podo, your Price and Product conditions would remain until the end of your contract's validity, but we want to give you an even more special welcome.
At Podo, you will continue with the same conditions you had for Price and Product until January 31, 2022.
We want the change to be as simple as possible for you, and what could be simpler than everything staying the same? Not the same, BETTER!
Podo offers you 12 MONTHS free of an emergency maintenance service for electrical faults and appliances. Valued at €68.
(…)”
In that same communication, on the last page and at the end of it, the following appears:
“(...)
On the other hand, we inform you that the discounts applied to the price of gas until now will cease to be valid from the next invoice. You have 15 days to terminate the contract if you do not agree with this change. If we do not receive notification from you within that period, we will consider these new conditions accepted.”
SIXTH. There are crossed emails between the claimant and the respondent dated 06/07/2021, 07/07/2021, and 08/07/2021 in which the claimant expresses their disagreement with the unilateral modification of the conditions agreed upon in the original contract.
SEVENTH. A document from the claimant dated 01/10/2021 addressed to the Consumer Section, Territorial Service of Salamanca, of the Junta de Castilla y León has been submitted in which it requests:
1) The payment by GEO ALTERNATIVA, S.L. (PODO) of the amount of invoice ***INVOICE.1, of (...) euros, plus the legal interest increased by two points applied to that amount, accrued and to be accrued from August 15, 2021, until the date of its full payment.

2) Declare the unilateral modification of the price applied in invoice ***FACTURA.2 as inadmissible, for the reasons expressed in the body of the document, obliging GEO ALTERNATIVA, S.L. to apply the agreed discount of 12% on the fixed fee and reduce the amount of said invoice to the sum of (...) euros.
3) Impose on GEO ALTERNATIVA, S.L. any economic sanctions that may be appropriate for the aforementioned contractual breach.
In light of the allegations presented, the aforementioned body issued a resolution, dated 17/02/22, in which it was agreed to archive the complaint due to having reached an agreement between the parties.
EIGHTH. There are requests for debt submitted to the claimant by the defendant dated 27/09/2021, 21/01/2022 (pending litigation before Consumer), and 30/08/2022, and the company Collecta Servicios de Gestión de Cobros, S.L. dated 31/03/2022, 17/08/2022, and 28/12/2022 requesting payment of invoice nº ***FACTURA.2, for an amount of (...) euros.
NINTH. Gas invoices have been submitted:
- No. ***FACTURA.3, consumption period 01/06/2021 to 30/06/2021 and issued by the defendant on 03/07/2021 for an amount of (...) euros
- No. ***FACTURA.2, consumption period 01/07/2021 to 31/07/2021 and issued by the defendant on 02/08/2021 for an amount of (...) euros.
- No. ***FACTURA.1, consumption period 25/02/2021 to 10/08/2021 and issued by the defendant on 13/08/2021 for an amount of -(...) euros,
TENTH. An email dated 05/09/2021 has been submitted, sent by the defendant to the claimant in which the following is stated:
“(...)
We inform you that, after carrying out the appropriate checks, the credit that is in your favor is already generating ***FACTURA.1 dated 13/08/2021 and an amount of: -(...) euros, the reason why it does not reach your bank is because invoice ***FACTURA.2 dated 02/08/2021 and an amount of: (...) euros, is unpaid or partially unpaid; until the total debt is generated, we cannot send the credit to your bank.
(…)”
ELEVENTH. A transfer receipt issued by the financial entity ING, dated 03/09/2021, has been submitted, with the claimant as the ordering party and the defendant as the beneficiary, recipient entity Banco Santander, destination account ES00 0000 0000 0000 0000 0000, for an amount of (...) euros; as additional information, ***TELÉFONO.1 Invoice ***FACTURA.2 (the claimant's mobile number and the invoice number) is included.
Additionally, a transfer receipt issued by the financial entity ING, dated 03/11/2023, has been submitted, with the claimant as the ordering party and the defendant as the beneficiary, recipient entity Banco Santander, destination account ES00 0000 0000 0000 0000 0000, for an amount of (...) euros; as additional information, the claimant's ID number is included.

LEGAL GROUNDS
I
Competence
In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.
Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish

Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Allegations to the Resolution Proposal

Firstly, the defendant presents a series of considerations regarding the debt as a preliminary allegation: that it was owed; that the client was aware that they had a debt with the defendant; that the debt originates from the return of an invoice; that the claimant proceeded to pay the full amount of the owed invoice in 2023; that the defendant removed the claimant from the solvency file before they had paid the debt; that there has been no financial detriment; and finally expresses their disagreement with the sanction since they insist that the inclusion in the file was correct given that the claimant was a debtor, even though the amount of that debt was not correctly reflected.

It is true that the claimant had a debt with the defendant, although not for the amount that had been entered into the file and claimed by them, as it should not be forgotten that the user had made a transfer for the amount of (...) euros; the National Court has stated in numerous rulings that anyone who uses such an extraordinary means of collection, as is the entry of the debt in a registry of defaulters, must ensure compliance with all the requirements that allow the use of this accessory means to achieve the collection of the debt.

It is evident that the defendant did not observe the formal and material requirements established in accordance with the regulations on personal data protection.

Therefore, it is required that the data be accurate and truthful, with the requirement of certainty being infringed upon when erroneous data is provided to a file that supplies information to third parties regarding the non-compliance with monetary obligations. Regarding the reference to the Supreme Court ruling of 27/02/2024 (Judgment No. 280/2024), it is noted that the arguments presented therein cannot be extrapolated to this case, as the cited ruling refers to how the mere inclusion of a non-delinquent person in a solvency file affects their right to honor regulated by Organic Law 1/1982, of May 5, on civil protection of the right to honor, personal and family privacy, and one's own image. In contrast, in the present case, within the scope of the competencies of this Agency, it seeks to determine whether the actions of the responding party were in accordance with the regulations on the protection of personal data. The Supreme Court in its ruling STS 398/2024, dated March 19, 2024, among others, establishes a clear distinction between the right to honor and the right to the protection of personal data.

- Regarding the absence of patrimonial harm caused to the claimant, such a statement cannot be accepted; the claimant had to proceed to deposit not only the amount they intended to appropriate but also, on 03/11/2023, transferred the invoice amount for the second time to avoid further intimidating demands and inclusion in the file, as evidenced in the eleventh proven fact with the transfer receipt issued by the financial entity ING, Ordering party, the claimant, and Beneficiary, the responding party, recipient entity Banco Santander, destination account ES00 0000 0000 0000 0000 0000, for an amount of (...) euros.
- As for their disagreement with the amount of the sanction and its relation to the principle of proportionality, the National Court has stated in numerous rulings that this principle cannot be exempt from judicial control, as the margin of appreciation granted to the Administration in imposing sanctions within the legally established limits must be developed by weighing, in any case, the concurrent circumstances, in order to achieve the necessary and due proportion between the alleged facts and the responsibility required, given that every sanction must be determined in accordance with the severity of the infringement committed and according to a criterion of proportionality in relation to the circumstances of the fact. Thus, proportionality constitutes a normative principle that is imposed on the Administration and that reduces the scope of its sanctioning powers.

Well, in accordance with the circumstances present in this case, it is considered that the principle of proportionality is not violated in the determination of the imposed sanction, resulting in it being weighed and proportionate to the severity of the infringement committed, the importance of the facts, as well as the circumstances taken into account to grade the sanction, without any reasons being appreciated that justify its reduction, especially considering the amount to which such sanctions may rise in accordance with Article 83.5 of the GDPR, which provides for a maximum administrative fine of €20,000,000 or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount.

- The responding party claims that the error made was due to the user paying the amount she deemed correct and not the full invoice, entering an amount that the system did not detect or link as payment, as it did not correspond to any amount owed.

However, such a statement cannot be accepted either; it is sufficient to point out, as stated in the proven facts tenth and eleventh, the email dated 5/09/2021, sent to the claiming party, which proves and evidences that she was aware that part of the payment had been made:

"(...)

We inform you that, after carrying out the necessary checks, the payment that is in your favor is already generating ***INVOICE.1 dated 13/08/2021 and an amount of: -(...) euros, the reason why it does not reach your bank is because the invoice ***INVOICE.2 dated 02/08/2021 and an amount of: (...) euros, is unpaid or partially unpaid until the total debt is generated we cannot send the payment to your bank.

(…)"

As well as the deposit that had been made as evidenced by the Transfer receipt issued by ING, dated 03/09/2021, with the ordering party being the claimant; the beneficiary being the responding entity; and the recipient entity being Banco Santander; with destination account ES00 0000 0000 0000 0000 0000, for an amount of (...) euros. In the same document, additional information appears ***PHONE.1 Invoice ***INVOICE.2 (the claimant's mobile number and the invoice number).

- The responding party alleges that notification was made requiring payment of the debt on numerous occasions, a debt that was acknowledged by the claiming party regardless of whether it was not the exact amount.

The inclusion in a solvency file in which personal data related to the compliance or non-compliance with monetary obligations provided by a creditor or by someone acting on their behalf or interest must be carried out in accordance with the provisions of Article 20.1 of the LOPDGDD, which establishes the need to meet a series of requirements for these purposes:

a) That the data has been provided by the creditor or by someone acting on their behalf or interest.

b) That the data refers to certain, overdue, and enforceable debts, the existence or amount of which has not been subject to administrative or judicial claim by the debtor or through a binding alternative dispute resolution procedure between the parties.

c) That the creditor has informed the affected party in the contract or at the time of requiring payment about the possibility of inclusion in such systems, indicating those in which they participate.

Therefore, the prior payment request is a prerequisite for any inclusion of data in the file, and it is necessary to point out that it is indeed debatable and

It is questionable whether payment demands were made prior when the debt was subject to administrative claim and the decision-making body had not issued a resolution on the matter. Thus, it

is stated in the eighth proven fact that the responding party sent communications to the claiming party demanding payment of invoice no. ***FACTURA.2, for the amount of (...) euros in an email dated 01/21/2022, when it was already aware of the deposit of the amount that the claiming party considered acceptable.
- Furthermore, it should be noted that the LOPDGDD in its Sixth Additional Provision, Incorporation of debts into credit information systems, establishes that:
“No debts with a principal amount less than fifty euros shall be incorporated into the credit information systems referred to in Article 20.1 of this organic law. The Government may update this amount by royal decree.”
Finally, the responding party claims that it does not consider Article 6.1 of the GDPR to be infringed, since the data was processed as the claiming party was a client of theirs; in addition to being necessary for the execution of a contract and considering that a legitimate purpose was pursued and the “fulfillment of an obligation by the data controller.”
In this regard, and without prejudice to the section of this resolution specifically dedicated to this point, it is only appropriate to emphasize that Article 20 of the LOPDGDD specifically establishes the necessary requirements to consider or presume the lawful nature of the inclusion of data in credit information systems from the perspective of data protection, whose basis of legitimacy is generally supported by the existence of a legitimate interest of the data controller. As indicated in the explanatory memorandum of the LOPDGDD, this article establishes a presumption “iuris tantum” of the prevalence of the legitimate interest of the controller when carried out with a series of requirements.
Likewise, in the case of solvency files, the Supreme Court considers that “for the inclusion of the debtor's data in a delinquent register to be considered legitimate,” it is necessary that the data contained therein be accurate and truthful, as well as relevant. To be considered relevant, there must not have been any questioning by the debtor, whether through administrative, judicial, or arbitration channels, regarding the amount or existence of the debt.
Considering the circumstances of this case, as outlined throughout the resolution, it cannot be concluded that the processing carried out by the responding party had a basis of legitimacy for it in the terms provided by Article 6.1 of the GDPR in relation to the aforementioned Article 20 of the LOPDGDD.
For all these reasons, the allegations made by the responding party cannot be accepted.

III

Unfulfilled obligation: infringement of Article 6.1 of the GDPR

The reported facts materialize in the inclusion of the personal data of the claimant in the ASNEF file in relation to a debt that lacked the requirement of certainty, which could violate the regulations on personal data protection.
Article 58 of the GDPR, Powers, states:
“2. Each supervisory authority shall have all of the following corrective powers:
(...)
i) impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;
(...)”
Article 5 of the GDPR, Principles relating to processing, establishes that:
“1. Personal data shall be:
a) processed lawfully, fairly, and transparently in relation to the data subject (‘lawfulness, fairness, and transparency’);
(...)”
And Article 6.1 of the GDPR establishes the circumstances under which the processing of personal

data may be considered lawful:
“1. Processing shall be lawful only if at least one of the following applies:
a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
c) processing is necessary for compliance with a legal obligation to which the controller is subject;
d) processing is necessary in order to protect the vital interests of the data subject or of another natural person.
e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.
The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

Furthermore, Recital 40 of the aforementioned GDPR states that "For processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis established by law, whether in this Regulation or by virtue of other Union or Member State law to which this Regulation refers, including the necessity of complying with a legal obligation applicable to the data controller or the necessity of performing a contract to which the data subject is a party or for the purpose of taking steps at the request of the data subject prior to entering into a contract."
On the other hand, Article 4 of the GDPR, Definitions, in its paragraphs 1, 2, and 11, states that:
“1) ‘personal data’: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;
“2) ‘processing’: any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction;
And Article 20 of the LOPDGDD, Credit Information Systems, establishes that:
“1. Unless proven otherwise, the processing of personal data relating to the non-fulfillment of monetary, financial, or credit obligations by common credit information systems shall be presumed lawful when the following requirements are met:
a) That the data have been provided by the creditor or by someone acting on their behalf or interest.
b) That the data refer to certain, overdue, and enforceable debts, the existence or amount of which has not been subject to administrative or judicial claim by the debtor or through a binding alternative dispute resolution procedure between the parties.
c) That the creditor has informed the affected party in the contract or at the time of requesting payment about the possibility of inclusion in such systems, indicating those in which they participate.
The entity maintaining the credit information system with data relating to the non-fulfillment of monetary, financial, or credit obligations must notify the affected party of the inclusion of such data and inform them about the possibility of exercising the rights established in Articles 15 to 22 of the GDPR.”

Regulation (EU) 2016/679 within thirty days following the notification of the debt to the system, with the data remaining blocked during that period.
d) That the data shall only be retained in the system as long as the non-compliance persists, with a maximum limit of five years from the due date of the monetary, financial, or credit obligation.
e) That the data relating to a specific debtor may only be consulted when the person consulting the system has a contractual relationship with the affected party that involves the payment of a monetary amount or has requested the conclusion of a contract that implies financing, deferred payment, or periodic billing, as occurs, among other cases, in those provided for in the legislation on consumer credit contracts and real estate credit contracts.
When the right to limit the processing of data has been exercised before the system by contesting its accuracy in accordance with the provisions of Article 18.1.a) of Regulation (EU) 2016/679, the system shall inform those who may consult it in accordance with the previous paragraph about the mere existence of such circumstance, without providing the specific data regarding which the right has been exercised, while the request of the affected party is being resolved.
f) That, in the event that the request for the conclusion of the contract is denied, or it does not come to fruition as a result of the consultation made, the person who consulted the system shall inform the affected party of the result of that consultation.
2. The entities that maintain the system and the creditors, regarding the processing of data related to their debtors, shall have the status of joint controllers of the data processing, with the provisions of Article 26 of Regulation (EU) 2016/679 being applicable.
It shall be the creditor's responsibility to ensure that the requirements for inclusion of the debt in the system are met, being liable for its non-existence or inaccuracy.
3. The presumption referred to in paragraph 1 of this article does not cover cases where credit information is associated by the entity maintaining the system with additional information not contemplated in that paragraph, related to the debtor and obtained from other sources, in order to profile the debtor, particularly through the application of credit scoring techniques.
The processing of personal data requires the existence of a legal basis that legitimizes it.

In accordance with Article 6.1 of the GDPR, in addition to consent, there are other possible bases that legitimize the processing of data without the need for authorization from the data subject, particularly when necessary for the execution of a contract in which the affected party is a party or for the application, at their request, of pre-contractual measures, or when necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party.

provided that the interests or the fundamental rights and freedoms of the affected party that require the protection of such data do not prevail over those interests. The processing is also considered lawful when it is necessary for compliance with a legal obligation applicable to the data controller, to protect vital interests of the affected party or another natural person, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller.
The claimed facts arise as a consequence of the subrogation by the responding party in the rights of CEPSA and the elimination of the discounts on the invoice that had been applied to the clientele; the claimant was informed of this subrogation on 07/01/2021, and in the same communication, it was indicated that the maintenance of the General and Specific Conditions of the contract was guaranteed "until the end date of the current annual period at the time of the effective assignment of the contract and, in any case, for a minimum period of six months from the date on which the effective assignment

of the contract occurs," including "Prices and discounts of your contracted rates."
The billing period of the responding party as a consequence or derived from the aforementioned subrogation contract began on 25/02/2021.
However, despite the previous communication, on 03/03/2021, the claimant received a new email from the responding party in which it was indicated, among other things, that: "Cepsa assured you that your price and product conditions would be maintained until the end of your contract's validity, but we want to give you an even more special welcome.
At Podo, you will continue with the same conditions you had for Price and Product until January 31, 2022."
In that same communication, separated from the rest, in a more subtle manner and attempting to obscure it, the claimant was informed that:
“(...)
On the other hand, we inform you that the discounts applied to the price of gas up to this point will cease to be valid from the next invoice. You have 15 days to terminate the contract if you do not agree with this change. If we do not receive notification from you within that period, we will consider these new conditions accepted.”
There is no record of notification from the claimant in the sense expressed in that paragraph, and the claimant herself acknowledges in her complaint that “this paragraph goes completely unnoticed, as it is not highlighted.”
The invoice received by the claimant No. ***INVOICE.3, for the consumption period from 01/06/2021 to 30/06/2021, issued by the responding party on 03/07/2021 and sent for collection, shows an amount of (...) euros, which is the amount that the claimant had been assuming, as it included the agreed discounts and bonuses.
However, in August, she receives invoice No. ***INVOICE.2, for the consumption period from 01/07/2021 to 31/07/2021 for an amount of (...) euros, no longer reflecting the discounts.

discounts that had previously been included. The affected party would express their disagreement with the amount stated in the invoice, considering that the discounts should extend at least until the date mentioned in the July communication, and that the amount should match what had been invoiced previously.
And that amount, (...) euros, was the one paid by the claimant to the account corresponding to the claim, as evidenced by the transfer receipt made at ING on 03/09/2021, ordered by the claimant and destined for the account owned by the respondent, rounded as the claimant clearly states to (...) euros.
However, the total amount of the invoice was demanded by the respondent without taking into account the payment made by the claimant, which meant that the debt included in the solvency file lacked the requirement of certainty, violating the conditions set forth in Article 20.1. b) of the LOPDGDD, which establishes that b) The data refers to certain, due, and enforceable debts, the existence or amount of which has not been subject to administrative or judicial claim by the debtor or through a binding alternative dispute resolution procedure between the parties.
Furthermore, there is an email dated 05/09/2021 sent to the claimant indicating:
“(...)
We inform you that, after making the necessary checks, the credit that is in your favor is already generating ***INVOICE.1 dated 13/08/2021 and an amount of: -(...) euros, the reason why it does not reach your bank is because the invoice ***INVOICE.2 dated 02/08/2021 and an amount of: (...) euros, is unpaid or partially unpaid until the total debt is generated we cannot send the credit to your bank.
(…)”
That is to say, the respondent acknowledged that part of the invoice had been paid by the claimant and was partially unpaid regarding the discounts and bonuses that had been applied to the invoice.
It should not be forgotten that the claimant filed a complaint with the Consumer Section, Territorial

Service of Salamanca, of the Junta de Castilla y León, in which it was requested:
1) The payment by GEO ALTERNATIVA, S.L. (PODO) of the amount of invoice ***INVOICE.1, of (...) euros, plus the legal interest increased by two points applied to that amount, accrued and to be accrued from August 15, 2021, until the date of full payment.
2) Declare the unilateral modification of the price applied in invoice ***INVOICE.2 as inappropriate, for the reasons expressed in the body of the document, obliging GEO ALTERNATIVA, S.L. to apply the agreed discount of 12% on the fixed fee and reduce the amount of that invoice to the sum of (...) euros.
3) Impose on GEO ALTERNATIVA, S.L. any economic sanctions that may arise from the aforementioned contractual breach.

And as established in the proven facts, in light of the allegations made, a Resolution was issued on 17/02/22, in which it was agreed to archive the complaint due to having reached an agreement between the parties.
However, from the request made by the claimant in the aforementioned complaint, it is noted that the first point has been addressed, as evidenced by the payment made by the defendant of invoice ***INVOICE.1, for the amount of (...) euros, for the period from 25/02/2021 to 10/08/2021, confirmed by the claimant in their letter dated 23/07/2023, indicating that they had received a call from Consumer Affairs stating that they would reimburse said invoice (This amount, as stated in the invoice, was due to the difference between actual consumption and contracted consumption and was owed by the company); nothing is mentioned regarding the rest, and the same claimant in the aforementioned letter adds “but no mention whatsoever of the supposedly unpaid invoice.”

Both before and after the date of the Consumer Resolution, and even while awaiting resolution, the company sent numerous communications demanding payment of the amount of invoice no. ***INVOICE.2, for the amount of (...) euros: there are emails dated 27/09/2021, 21/01/2022 (while the litigation was pending before Consumer Affairs), and 30/08/2022; also, the entity Collecta Servicios de Gestión de Cobros, S.L. in letters dated 31/03/2022, 17/08/2022, and 28/12/2022 addressed the claimant demanding payment, granting them a deadline for this, and, failing that, to file a claim in monitoring proceedings for non-payment. Finally, the claimant received a letter from ASNEF/EQUIFAX dated 30/05/2023 informing them of the registration of their personal data in the ASNEF file as a result of the non-payment of invoice no. ***INVOICE.2, for the amount of (...) euros.
The First Chamber of the Supreme Court -in its rulings SSTS 463/2019, of September 11; 174/2018, of March 23; 68/2016, of February 16; 740/2015, of December 22; and 176/2013, of March 6, among others- has established a doctrine that can be summarized as follows:
“The data included in these delinquent records must be true and accurate; however, mere compliance with these requirements is not sufficient to meet the demands of the principle of data quality in this type of records. There are data that can be true and accurate without being pertinent, as they are not determinative for assessing the economic solvency of the parties involved.
- If the debt is subject to controversy because the data holder legitimately believes that they do not owe what is being claimed and the matter is subject to judicial or arbitral decision, the lack of payment is not indicative of the affected party's insolvency. It may be that the debt is ultimately recognized, in whole or in part, by the judgment or arbitral award and therefore can be considered as a true data. But it was not a pertinent and proportionate data for the purpose of the automated file, because its purpose is not merely to record debts, but to evaluate the financial solvency of the affected parties. Therefore, only the inclusion in these files of those debtors who cannot or do not want, without justification, to pay their debts is pertinent, but not of those who are legitimately disputing with the creditor the existence or amount of the debt.
- When it comes to files related to the fulfillment of monetary obligations, the debt must also be due and enforceable, certain, that is,

unequivocal, undeniable, and requiring prior demand for payment. For this reason, personal data related to uncertain, doubtful, non-peaceful debts, or those subject to litigation cannot be included in these records.
- Inclusion in the delinquent records cannot be used by large companies to seek the collection of amounts they deem pertinent, relying on the fear of personal discredit of the affected party, the detriment to their professional reputation, and the denial of access to the credit system that comes with appearing in a delinquent file, thus avoiding the expenses that would entail initiating the corresponding judicial procedure, which is often greater than the amount of the debts they claim.
Therefore, inclusion in the delinquent record when the client has legitimately questioned the existence or amount of the debt, through judicial or arbitral means, constitutes illegitimate pressure.
Consequently, in light of the aforementioned doctrine, the question posed by the Admission Section can be answered in the following terms:
Considering the purpose of such records—which is not to verify the non-payment of debts, but to assess the debtor's financial solvency— for the inclusion of the debtor's data in a delinquent record to be considered legitimate, it is not enough for the amount of the unpaid debt to be accurate and truthful; it is also necessary for the inclusion in the record to be pertinent. It will not be pertinent when the debtor has legitimately questioned, through administrative, judicial, or arbitral means, the existence or amount of the debt.
Therefore, the conduct of the responding party is considered to violate the principle of legality enshrined in Article 6.1 of the GDPR, in relation to Article 20.1 of the LOPDGDD, as typified in Article 83.5 a) of the GDPR.

IV

Typification of the infringement of Article 6.1 of the GDPR

The infringement attributed to the respondent is typified in Article 83.5 a) of the GDPR, which states that the infringement of "the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9" is subject to sanction, in accordance with paragraph 5 of the aforementioned Article 83 of the cited Regulation, "with administrative fines of up to €20,000,000 or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount."
The LOPDGDD in its Article 71, Infringements, states that: "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."
And in its Article 72, it considers for the purposes of prescription that they are: "Very serious infringements:
1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and will prescribe after three years:
(…)
b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.
(…)"

V

Sanction for infringement of Article 6.1 of the GDPR

In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:
"1. Each supervisory authority shall ensure that the imposition of administrative fines under this Article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 is, in each individual case, effective, proportionate, and dissuasive.
2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as

an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:
a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and detriment they have suffered;
b) the intentionality or negligence in the infringement;
c) any measures taken by the controller or processor to mitigate the damage and detriment suffered by the data subjects;
d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented in accordance with Articles 25 and 32;
e) any previous infringement committed by the controller or processor;
f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
g) the categories of personal data affected by the infringement;
h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.
In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," establishes that:
“2. According to the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:
a) The ongoing nature of the infringement.
b) The connection of the infringer's activity with the processing of personal data.
c) The benefits obtained as a result of the commission of the infringement.
d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
f) The impact on the rights of minors.
g) Having, when not mandatory, a data protection officer.
h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”
- According to the transcribed provisions, for the purpose of determining the amount of the fine to be imposed in this case for the infringement of Article 6.1 of the GDPR, classified in Article 83.5.a) of the GDPR for which the respondent is held responsible, the following factors are deemed concurrent:
The nature and severity of the infringement; the facts revealed affect a basic principle related to the processing of personal data, such as legitimacy, which the regulation penalizes with the utmost severity; the level of harm suffered by the claimant that affects their economic solvency due to being included in common credit information systems at the request of the respondent in relation to a debt that lacked the requirement of certainty since the claimant had paid for the consumption incurred without the discounts they had previously benefited from (Article 83.2.a) of the GDPR).
The intentionality or negligence in the infringement, as the respondent included the data in a

delinquent file without the debt meeting the requirements of Article 20.1 of the LOPDGDD. Also connected with the degree of diligence that the data controller is obliged to exercise in complying with the obligations imposed by data protection regulations, the SAN of 17/10/2007 can be cited. Although it was issued before the GDPR came into effect, its ruling is perfectly extrapolable to the case we are analyzing. The ruling, after referring to the fact that entities whose activities involve continuous processing of data from clients and third parties must observe an adequate level of diligence, specified that "(...). the Supreme Court has understood that there is negligence."

whenever a legal duty of care is neglected, that is, when the offender does not behave with the required diligence. In assessing the degree of diligence, particular attention must be paid to the professionalism or lack thereof of the individual, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it is essential to emphasize the rigor and exquisite care required to comply with the legal provisions in this regard (Article 83.2, b) of the GDPR).

The activity of the infringing entity is linked to the processing of personal data of both clients and third parties. In the activity of the entity being claimed, the processing of personal data is essential, and given its business volume, the significance of the conduct subject to this claim is undeniable (Article 76.2.b) of the LOPDGDD in relation to Article 83.2.k).

In accordance with the above, it is deemed appropriate to impose a sanction of 20,000 euros for the violation of Article 6.1 of the GDPR.

VI

Adoption of Measures

The corrective powers that the GDPR attributes to the AEPD as the supervisory authority are listed in Article 58.2, paragraphs a) to j).

Upon confirming the infringement, it may be agreed to impose on the responsible party the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame…". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

Therefore, it is considered appropriate to order that the respondent, within six months from the finality of the resolution, adjust the processing activities subject to this procedure to the applicable regulations. This resolution outlines the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the specific types of procedures, mechanisms, or instruments for implementing them correspond to the sanctioned party, as they are the ones who fully understand their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD. Specifically, they must comply with the requirements set forth in the data protection regulations by legitimizing the processing in accordance with the requirements specified in Article 20 of the LOPDGDD.

It is noted that failure to comply with the order imposed by this body may be considered an administrative infringement in accordance with the provisions of the GDPR.

classified as an infringement in its articles 83.5 and 83.6, which may motivate such conduct to initiate a

further administrative sanctioning procedure.
Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

The Director of the Spanish Agency for Data Protection RESOLVES:
FIRST: TO IMPOSE on GEO ALTERNATIVA, S.L., with NIF B87382644, for an infringement of article 6.1 of the GDPR, classified in article 83.5.a) of the GDPR, a fine of €20,000 (twenty thousand euros).
SECOND: TO ORDER GEO ALTERNATIVA, S.L., with NIF B87382644, that pursuant to article 58.2.d) of the GDPR, within 6 months from the date this resolution becomes final and enforceable, to demonstrate compliance with the requirements established by the data protection regulations regarding the legitimacy of the processing subject to this procedure, in accordance with the requirements set forth in article 20 of the LOPDGDD.
THIRD: TO NOTIFY this resolution to GEO ALTERNATIVA, S.L.
FOURTH: This resolution shall be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right. The sanctioned party is warned that they must pay the imposed sanction once this resolution is enforceable, in accordance with the provisions of article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.
IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.
Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.
In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.
Against this resolution, which concludes the administrative procedure in accordance with article 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.
Finally, it is noted that in accordance with the provisions of article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [https://sedeagpd.gob.es/sede-electronica-web/], or through any of the other registries provided for in article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.
Mar España Martí
Director of the Spanish Agency for Data Protection

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